privacy_policy

Terms of Use — nexus

ⓘ What this document is

The binding agreement between nexus and any person who accesses, uses, or deploys the service. Operative text plus the reasoning behind each clause. The reasoning is not part of the agreement — it exists so a reader understands why a clause was written the way it was, and so a future editor knows what would break if they changed it.

⚠ Not legal advice

This is a working draft. Have counsel in your operating jurisdiction review it before you publish it. Clauses that work in the EU may not work in the US, and vice versa. The document is written to be jurisdiction-agnostic where possible and to flag where a jurisdiction-specific choice is required.

Overview

TERMS_OF_USE.md is the second of six documents in the nexus legal suite. It sits between the `LICENSE` (which governs the software) and the `PRIVACY_POLICY` (which governs the data). It answers the question the LICENSE does not: *what happens when someone uses nexus as a hosted service?*

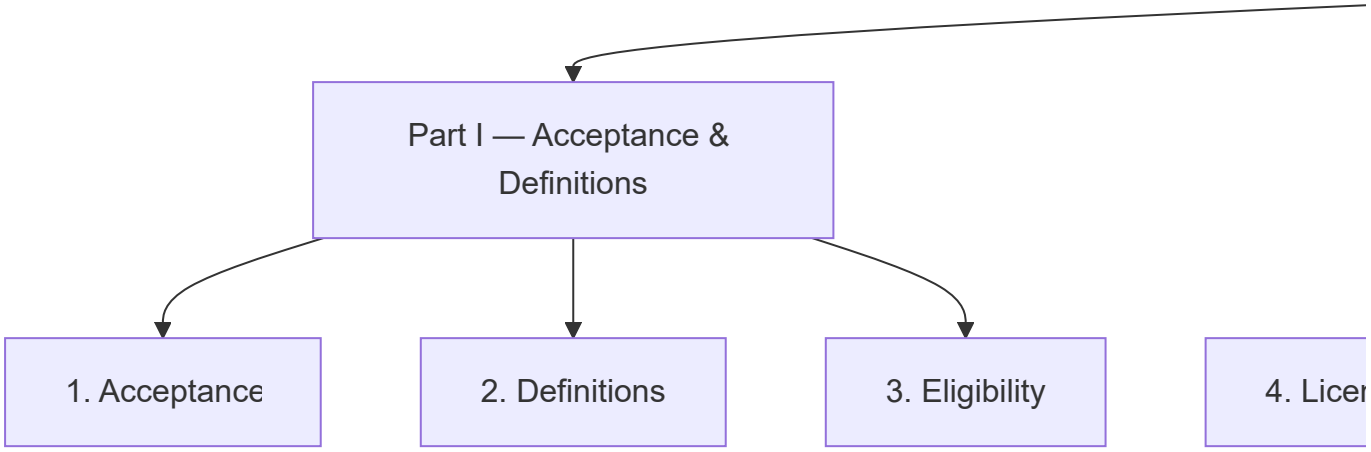
Three audiences read this document.

Audience	What they need from it
End users of a hosted nexus instance	Know what they can do with the service, what they cannot do, and what happens if they cross the line
Operators who deploy nexus for others	Know what they must tell their users, and what disclaimers they must carry forward
Counsel reviewing the deployment	Spot gaps, jurisdiction conflicts, and unenforceable clauses before they become problems

Why nexus needs a Terms of Use separate from the LICENSE

The MIT license governs *the code*. It does not govern *the service*. A user who visits `nexus.example.com` is not accepting the MIT license by using the website — they are entering a service relationship. That relationship needs its own terms.

Document structure at a glance



The four-part division is not arbitrary. Part I establishes the agreement exists. Part II defines the relationship. Part III allocates risk. Part IV handles the mechanics of the relationship after it begins.

Part I — Acceptance and Definitions

1. Acceptance of Terms

Operative text

By accessing, browsing, or using the nexus service (the "Service"), you acknowledge that you have read, understood, and agree to be bound by these Terms of Use, together with the LICENSE, the PRIVACY_POLICY, and any additional terms referenced herein. If you do not agree, you must not use the Service.

Why this clause exists

This is the clause that converts a website visit into a legal relationship. Without it, a user can argue they never agreed to anything. The clause names the other documents so

that acceptance of this document is simultaneously acceptance of every document in the suite. It also provides an opt-out: "if you do not agree, do not use."

Drafting note. Some jurisdictions require an affirmative action (clicking a checkbox, checking a box, providing a password) for terms to be enforceable. Passive "by using the site you agree" is valid in the US and UK but contested in parts of the EU. If your target audience is primarily European, add a checkbox or a "I have read and accept" gate at first use.

2. Definitions

Operative text

"Service" means the nexus hosted instance operated by the operator identified in Section 15, including the web interface, the API, and any related tooling.

"Operator" means the person or entity that deploys and hosts the Service.

"User" or **"you"** means any natural or legal person accessing the Service.

"Input" means any URL, search query, identifier, or other content you submit to the Service.

"Output" means any content the Service returns to you, including cleaned text, reports, graph data, and metadata.

"Target" means any third-party website, API, or resource that the Service fetches on your behalf.

"Personal Data" has the meaning given in the applicable data protection law of your jurisdiction.

Why this clause exists

Every legal document uses shorthand. This section defines the shorthand once so the rest of the document does not need to repeat definitions inline. The definitions match the ones in PRIVACY_POLICY.md and LICENSE so there is no cross-document conflict.

Drafting note. "Operator" is deliberately separate from "User" because nexus can be deployed by one party and used by another. The Terms bind the User; the Operator is identified only for the purpose of contact and governing law.

3. Eligibility

Operative text

You must be at least 18 years old, or the age of legal majority in your jurisdiction, whichever is greater, to use the Service. By using the Service, you represent and warrant that you meet this requirement and that you have the legal capacity to enter into a binding agreement.

Why this clause exists

Minors cannot be bound by contracts in most jurisdictions. This clause requires users to self-certify their age. It does not stop a determined minor from lying, but it does create a warranty that the Operator can rely on if a dispute arises.

Drafting note. If the Service is used exclusively in a business setting, consider adding a clause requiring users to be acting on behalf of an entity with authority to bind that entity.

Part II — Rights and Obligations

4. License to Use the Service

Operative text

Subject to your compliance with these Terms, the Operator grants you a limited, revocable, non-exclusive, non-transferable, non-sublicensable license to access and use the Service for its intended purpose. This license does not include any right to resell, sublicense, or commercially exploit the Service except as expressly permitted by the Operator in writing.

Why this clause exists

This is the affirmative grant. Without it, the ToU only tells the user what they cannot do. This clause tells them what they can do: use the Service as intended. The limitations (revocable, non-exclusive, non-transferable) preserve the Operator's flexibility — the Operator can shut off a specific account, run the Service for many users, or refuse to let a user hand off their access to someone else.

Interaction with the LICENSE. The `LICENSE` covers software rights: the right to fork, modify, redistribute. This clause covers service rights: the right to make HTTP requests

against a running instance. They are orthogonal. A user who forks the code has the LICENSE. A user who hits the URL has these Terms.

5. Permitted Use

Operative text

The Service may be used only for lawful purposes and only against Targets you own or have explicit authority to access. "Explicit authority" means one of the following.

5.1 You own the Target.
5.2 The Target's operator has given you documented permission to access or analyze it.
5.3 The Target is a publicly available resource whose own terms of service permit automated access, including compliance with any applicable `robots.txt` directives.
5.4 You are acting under a lawful legal instrument — a court order, a regulatory mandate, an authorized pen-test engagement, or an equivalent authorization.

You are solely responsible for determining whether you have authority to access any Target. The Operator does not investigate or verify your authority.

⚠ The most important clause in this document

This is the clause that separates "legitimate scraping tool" from "weapon." Every successful scraping lawsuit turns on whether the defendant had authorization. This clause passes the authorization question to the User and disclaims the Operator's responsibility to check.

Drafting note. The four sub-clauses mirror the four categories courts have consistently recognized: ownership, permission, public availability, and legal mandate. If your jurisdiction has a distinctive authorization regime (for example, an EU member state with strict database rights), add a fifth category.

6. Prohibited Conduct

Operative text

You may not use the Service to:

6.1 Access any Target without authority, or in violation of any law, regulation, or contractual obligation.
6.2 Bypass, circumvent, or defeat any authentication, paywall, rate limit, IP block, CAPTCHA, or other access control of a Target.
6.3 Impersonate any person or entity, or misrepresent your affiliation with any person or

entity.
6.4 Collect, harvest, or process Personal Data of any individual without a lawful basis for doing so.
6.5 Access, scrape, or retain any content the possession of which is unlawful in your jurisdiction.
6.6 Conduct denial-of-service or load-testing attacks against any Target.
6.7 Use the Service to develop, train, or improve a competing commercial product without the Operator's written permission.
6.8 Circumvent any technical measure implemented by the Operator, including rate limits and quotas.
6.9 Store, transmit, or publish malware, phishing content, or child sexual abuse material.
6.10 Violate the rights of any third party, including intellectual property rights, privacy rights, and contractual rights.

Why this clause exists

Each numbered item corresponds to a specific category of legal exposure. The clause is a wall against the Operator being deemed a "facilitator" of the prohibited activity.

- **6.1** — general anti-CFAA
- **6.2** — anti-circumvention, DMCA §1201
- **6.3** — impersonation
- **6.4** — GDPR, CCPA, and equivalents
- **6.5** — CSAM, terrorist content, stolen data
- **6.6** — civil liability for DoS
- **6.7** — trade secret protection, non-compete clauses
- **6.8** — enforcement of the Operator's own controls
- **6.9** — criminal content
- **6.10** — general third-party rights

Drafting note. Sub-clause 6.7 (competing product) is aggressive. It is enforceable in some jurisdictions and unenforceable in others. In the EU, it may conflict with the freedom to conduct a business. Keep it if your target market tolerates it; drop it if your audience is European consumers.

7. Intellectual Property

Operative text

7.1 The Service itself, including its source code, its visual design, its documentation, and its name, is owned by the Operator and its licensors and is protected by copyright

and other intellectual property laws. Your rights to the source code are governed by the LICENSE.

7.2 Output generated by the Service from a Target is subject to the intellectual property rights of the Target's owner. The Operator claims no ownership over Output. You are solely responsible for ensuring that your use of Output complies with the Target's terms and applicable law.

7.3 The Service does not claim any rights to Input you submit, beyond the rights necessary to process it (cache it temporarily, transmit it to the Target, log the request for abuse prevention).

Why this clause exists

Three separate IP questions get answered here.

1. **The code.** The Operator owns it, but distributes it under the LICENSE. The clause directs the user to the LICENSE for their actual rights.
2. **The Output.** The Operator disclaims ownership of scraped content. This matters because if the Operator claimed ownership, they would be assuming liability for the content.
3. **The Input.** The user retains their rights. The Operator only has a narrow operational license to process it.

Drafting note. 7.2 is the clause that protects the Operator from being named as a co-defendant in a copyright case brought by a Target against a User. It says, in effect: *the Output is not ours, and what you do with it is your problem.*

8. User Submissions

Operative text

If you provide feedback, suggestions, bug reports, or feature requests to the Operator, you grant the Operator a perpetual, worldwide, royalty-free, irrevocable license to use, reproduce, modify, and distribute that feedback in any form and for any purpose, without compensation or attribution to you.

Why this clause exists

Without this clause, a user who sends a bug report could later claim ownership of the fix that resulted from it. The clause converts every inbound suggestion into freely usable input. This is standard practice across open-source and SaaS products.

Drafting note. If you want to be generous, add a sub-clause offering credit in a `CONTRIBUTORS.md` file for substantive contributions. It does not weaken the license grant but it encourages participation.

Part III — Liability and Disputes

9. Disclaimers

Operative text

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE." THE OPERATOR MAKES NO WARRANTY, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION ANY WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, OR UNINTERRUPTED AVAILABILITY. THE OPERATOR DOES NOT WARRANT THAT THE SERVICE WILL BE ERROR-FREE, THAT ANY TARGET WILL BE SUCCESSFULLY FETCHED, THAT ANY OUTPUT WILL BE ACCURATE OR COMPLETE, OR THAT THE SERVICE WILL COMPLY WITH ANY SPECIFIC REGULATORY REQUIREMENT.

Why this clause exists

The all-caps formatting is not stylistic. Under the Uniform Commercial Code and analogous statutes in most common-law jurisdictions, warranty disclaimers must be "conspicuous" to be enforceable. All-caps is the conventional signal of conspicuousness. Do not lowercase this clause.

10. Limitation of Liability

Operative text

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE OPERATOR'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THE SERVICE SHALL NOT EXCEED THE GREATER OF (A) THE AMOUNT YOU PAID THE OPERATOR IN THE TWELVE MONTHS PRECEDING THE CLAIM, OR (B) ONE HUNDRED US DOLLARS. IN NO EVENT SHALL THE OPERATOR BE LIABLE FOR

ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, LOSS OF DATA, OR BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

⚠ Jurisdiction alert

This clause is not enforceable in every jurisdiction.

- **EU / EEA** — consumer protection law limits the enforceability of liability caps against consumers. The clause may be void.
- **Germany** — caps on liability for gross negligence are unenforceable.
- **France** — some caps on liability for personal injury are unenforceable.
- **US** — generally enforceable between sophisticated parties, less so against consumers.

If your user base is primarily European consumers, this clause needs jurisdiction-specific carve-outs. See the `multi-juris` module in the license suite.

11. Indemnification

Operative text

You agree to indemnify, defend, and hold harmless the Operator, its officers, directors, employees, agents, and successors from and against any claim, liability, damage, loss, or expense (including reasonable attorney's fees) arising out of or relating to (a) your use of the Service in violation of these Terms, (b) your violation of any law or third-party right, or (c) any content you submit to the Service.

Why this clause exists

If a Target sues the Operator because of *your* scraping, this clause requires *you* to pay the Operator's defense. It is the mirror image of the disclaimers in Sections 9 and 10. Without it, the Operator's only defenses are the disclaimers; with it, the Operator can recover costs.

Drafting note. Indemnification clauses in consumer contracts are often unenforceable. In B2B contracts they are standard. If the Service is offered to consumers, consider limiting this clause to "claims arising from your violation of Section 6 (Prohibited Conduct)."

Part IV — Administration

12. Termination

Operative text

12.1 You may stop using the Service at any time.

12.2 The Operator may suspend or terminate your access to the Service at any time, with or without notice, for any reason, including but not limited to a violation of these Terms or a legal requirement.

12.3 Sections 7, 8, 9, 10, 11, 13, 14, and 15 survive termination.

Why this clause exists

The survival clause (12.3) is critical. When the relationship ends, the clauses that allocate risk must continue to apply. Otherwise, a user could violate the Terms, get terminated, and then claim the liability limits no longer bind them.

13. Governing Law

Operative text

These Terms are governed by the laws of **[JURISDICTION]**, without regard to its conflict of laws principles. The exclusive forum for any dispute arising out of or relating to these Terms is the courts of **[JURISDICTION]**, and each party consents to personal jurisdiction in those courts.

⚠ Fill this in before publishing

The `[JURISDICTION]` placeholder must be replaced with a specific country and, where relevant, a specific state or province. Leaving it blank creates ambiguity that will be resolved against the Operator in most courts. For nexus deployments, the natural choices are:

- The jurisdiction where the Operator is incorporated
- The jurisdiction where the primary server is located
- If neither is stable, the jurisdiction of the Operator's primary business address

14. Changes to Terms

Operative text

The Operator may modify these Terms at any time. The current version will always be available at the URL where these Terms are published, with a "Last Updated" date at the top. Continued use of the Service after a modification constitutes acceptance of the modified Terms. If you do not agree to the modified Terms, your sole remedy is to stop using the Service.

Why this clause exists

Without it, the Operator would need to obtain fresh consent from every user for every change — an impossible burden. With it, the Operator can update the Terms unilaterally, subject to the "continued use = acceptance" rule.

Some jurisdictions (notably the EU) require affirmative consent for material changes, particularly in consumer contracts. If your audience is European, add a notice requirement (e.g., "we will email you 30 days before any material change").

15. Contact

Operative text

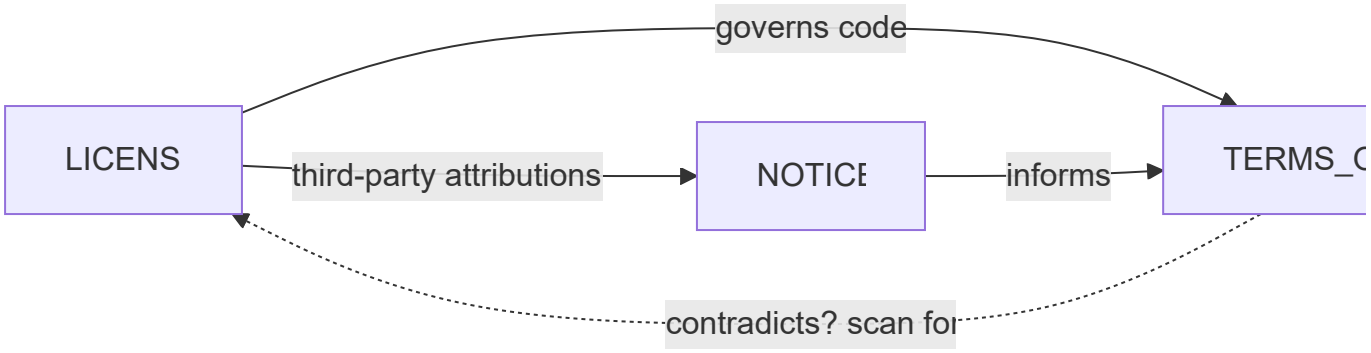
Questions about these Terms may be directed to:

Operator: [OPERATOR NAME]
Address: [POSTAL ADDRESS]
Email: [CONTACT EMAIL]
Data Protection Officer (if applicable): [DPO EMAIL]

⚠ Fill this in before publishing

A Terms of Use document without a contact section is unenforceable in some jurisdictions and unprofessional everywhere. The email must be monitored. The postal address must be a real address where legal notices can be served.

Cross-document connections



Contradiction scan

Before publishing, read these three documents side by side. The most common contradictions are:

- The LICENSE says "you may redistribute freely" but the ToU says "you may not resell the Service."
- The Privacy Policy says "we do not collect email addresses" but the ToU contact section requires a working email.
- The ToU says "no automated access" but a Permitted Use clause permits automated access.

None of these are fatal on their own — the LICENSE governs code and the ToU governs service, so the contradiction may be illusory. But read carefully.

Sub-topics worth their own notes

- Privacy Policy — the sibling document; every Personal Data reference in the ToU must match its definitions
- Terms of Service — if the Service has accounts, billing, or SLAs, this is required in addition to the ToU
- DMCA Policy — a US-specific addendum for takedown handling, required to preserve safe harbor
- Cookie Policy — if the Service sets cookies, this must be referenced from both the ToU and the Privacy Policy
- Data Processing Agreement — required for B2B customers who are GDPR data controllers
- Contributor License Agreement — required if the project accepts external contributions
- Security Disclosure Policy — how to report vulnerabilities, referenced from the ToU contact section

Examples in the wild

For reference, three real Terms of Use documents worth studying, each for a different reason.

Service	Why worth studying
GitHub Terms of Service	Clear separation between the website terms, the API terms, and the corporate terms. Model for a project that has both a code license and a service.
Cloudflare Self-Serve Subscription Agreement	Excellent risk allocation between a service provider and a customer. Uses plain language without being vague.
Stripe Services Agreement	Model for a service that handles sensitive data. Shows how to incorporate a Privacy Policy and a Data Processing Addendum by reference.

What to borrow

From GitHub: the three-document structure (site, API, corporate). From Cloudflare: plain-language risk allocation. From Stripe: the referenced-addendum pattern for regulatory compliance.

Open questions

Unresolved

- **What is the Operator's identity?** The document is written for a generic operator. Before publication, `[OPERATOR NAME]`, `[POSTAL ADDRESS]`, `[CONTACT EMAIL]`, and `[JURISDICTION]` must be filled in with real values.
- **Is the Service offered to consumers or to businesses?** This changes everything from the liability cap to the indemnification clause to the change-of-terms clause. The current draft mixes both. Pick one and adjust.
- **Is the Service free or paid?** If paid, the ToU needs a fees section, a refund policy, and (in the EU) a consumer withdrawal clause. If free, the "amount paid" in the liability cap is zero and the cap falls back to the $100 floor.
- **Is there any user account system?** If yes, a `TERMS_OF_SERVICE.md` is required in addition to this document. If no, this document stands alone.
- **Is the Service deployed in the EU?** If yes, GDPR-specific provisions are needed in the Privacy Policy and referenced here. The current draft is jurisdiction-agnostic;

that is a starting point, not a finished state.

- **Does the Operator want to be able to ban users?** Section 12 permits it. If the Operator prefers a gradual enforcement model, add a warning-based escalation path.
- **Does the Service have any health, financial, or regulated sector use?** If yes, additional sector-specific disclaimers are required before the ToU can be finalized.
- **Is there an arbitration clause or a class action waiver?** The current draft does not include either. Adding them changes the dispute resolution landscape significantly. Consult counsel.

Document version: 1.0.0 · **Effective:** upon publication · **Next review:** after jurisdiction is filled in.